

Authority for Personal Data
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 The Minister for Legal Protection
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Date

April 9, 2024

Our reference

2023-303493

Your letter dated

December 21, 2023

Contact person

Your reference

5075876

Subject

Legislative Review Draft Bill Collection Act JenV 2024

Dear Mr. Weerwind,

In your letter dated December 21, 2023, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR) and Article 35b, paragraph 1, under b, of the Police Data Act (Wpg), regarding the draft amendment of several laws in the field of Justice and Security in connection with adjustments of predominantly technical nature (hereinafter: the draft).

The review is limited to Articles XV, XXII, part A, and XXXIV, part E, of the draft.

The AP has several comments on the draft.

Main Points

- The necessity of expanding the powers of the Public Prosecutor in Article 511aa, paragraph 1, of the Code of Criminal Procedure (Sv) is insufficiently substantiated.
- Furthermore, the draft contains several technical inaccuracies.

Scope of the Draft

Article XV

Sometimes a person unexpectedly evades the execution of mandatory mental health care. If there is a serious suspicion that this person is in life-threatening danger or will commit a crime as referred to in Article 67, paragraph 1, of the Code of Criminal Procedure (Sv) with significant risk of serious harm to themselves or to another, the residence of that person may be determined under the authority of the public prosecutor. Article 13:3a of the Mental Health Care (Compulsory Treatment) Act (Wvggz) grants the public prosecutor the necessary powers for this purpose. Four of those powers are exercised in relation to a provider of a communication service.

In the establishment of the Wvggz, it was inadvertently not provided for the amendment of the Telecommunications Act (Tw) to Article 13:3a of the Mental Health Care (Compulsory Treatment) Act. This draft bill aims to rectify this omission. To this end, obligations – in the form of supporting provisions – are included in the Tw that provide a basis for a provider to process personal data in execution of a request from the public prosecutor under the Wvggz.

The proposed amendment to Article 11.13, paragraph 1, Tw1 does not concern a basis but a general provision regarding the interests that may lead providers of a communication service to disregard

Articles 11.5 (traffic data), 11.5a (location data), and 11.9, paragraph 1 (number masking), Tw.2 To these interests is added – in line with Article 13:3a Wvoggz3 – the protection of a person's life.

Article XXII, part A

The current Article 2.5 of the Forensic Care Act (Wfz) obliges the care provider to make preparations for follow-up care six weeks before the expiration of the judicial title, if the care provider or the therapist believes that further care is needed after the expiration of the title. The proposed additions to Article 2.5 Wfz regulate that personal data⁴ will be processed in the execution of this obligation.

Article XXXIV, part E

The existing Article 511aa, paragraph 1, Sv lists the powers that the public prosecutor⁵ may apply in the factual investigation into the use of violence by officials.

In the draft, the power to request images made with cameras for the security of goods, buildings, or persons⁶ and the power to request personal data concerning someone's religion or belief, race, political opinion, health, sexual life, or membership of a trade union⁷ are added to this enumeration.

1 Article XV, part B.

2 These provisions are part of Chapter 11 (Protection of Personal Data and Privacy) Tw.

3 See, however, the following advisory point: Unambiguous terminology “life-threatening danger” (Article XV, part B).

4 including personal data concerning health or criminal data.

5 or, in certain cases, the assisting public prosecutor or the investigative officer. In practice, usually the National Investigation Service (Kamerstukken II, 2016-2017, 34 641, no. 3, p. 23).

6 Article 126nda Sv.

7 Article 126nf Sv.

Date

April 9, 2024

Our reference
2023-303493

3/5

Legislative Review

Insufficient justification for the expansion of the powers of the Public Prosecutor (Article XXXIV, part E) The background for the expansion of the powers of the Public Prosecutor in Article 511aa, first paragraph, of the Code of Criminal Procedure (Sv) is that, according to the explanatory memorandum, these powers were previously “accidentally” not included in that article.⁸

In the explanatory memorandum for Article 511a Sv, the choice for the powers included in this article was justified as follows:

“The powers included in the proposed provision enable the national investigative service to conduct a thorough investigation aimed at establishing the facts and assessing whether the investigating officer acted in accordance with his use of force instructions. Other than these powers are practically never necessary for this purpose, I note in response to the question from the NVvR regarding the basis for the choice of the mentioned investigative powers and why the mentioned powers suffice. The Public Prosecution Service and the national investigative service have been consulted on this, and previous investigations into the use of force by an investigating officer have been reviewed. I believe it goes too far to enable all investigative powers [...] to be exercised in the factual investigation.”⁹

It must therefore be concluded that other than the powers currently included in Article 511a Sv were not deemed necessary. It is certainly conceivable that there are now different views on this, but it is incorrect and insufficient to note that the powers to be added now were “accidentally” not included in Article 511aa, first paragraph, Sv.

This must therefore be argued further.

Moreover, for the processing of special personal data¹⁰, it applies that the processing of this data is

only permitted when the processing is strictly necessary.¹¹ This must also be made plausible in the explanatory memorandum.

The Data Protection Authority (AP) concludes that the necessity of the expansion of the powers of the Public Prosecutor in Article 511aa, first paragraph, Sv, is insufficiently substantiated, so that an addition to the explanatory memorandum on this point is necessary.

Unambiguous terminology “danger to life” (Article XV, part B)

With the proposed amendment to Article 11.13, first paragraph, of the Telecommunications Act (Tw), a provider of a communication service can disregard Articles 11.5, 11.5a, and 11.9, first paragraph, Tw, if this is necessary in the interest of “the protection of a person's life.”

8 Explanatory memorandum, p. 26.

9 Parliamentary documents II, 2016-2017, 34 641, no. 3, p. 23.

10 Article 126nf Sv.

11 Article 10 Directive 2016/680.

Date

April 9, 2024

Our reference

2023-303493

4/5

However, the linked provision in the Mental Health Act (Wvggz) refers to “danger to life.”¹² To prevent misunderstandings and interpretation problems, it seems better and clearer to also use the term “danger to life” in the Tw.

The AP concludes that the draft may unnecessarily lead to misunderstandings and interpretation problems, so that an adjustment of Article XV, part B, is necessary.

Overly broad reference in Article 13.2, first and second paragraphs, Tw (Article XV, part C)

In Article 13.2, first and second paragraphs, Tw (interception, recording), after ‘the Code of Criminal Procedure’, the phrase ‘or the Act on Mandatory Mental Health Care’ is inserted.¹³ The explanatory memorandum indicates that this specifically and exclusively concerns Article 13:3a, first paragraph, part b, Wvggz.¹⁴

The AP concludes that the reference to the (entire) Wvggz in Article 13.2, first and second paragraphs, Tw is too broad, and that a specific reference should be made to Article 13:3a, first paragraph, part b, Wvggz. Therefore, an adjustment of Article XV, part C, is necessary.

Workload of the AP

The AP notes that the draft is not expected to require additional effort from the AP.

Publication

This legislative review will be published on the AP's website within two weeks.

Yours sincerely,

Data Protection Authority,

Aleid Wolfsen

Chairman

12 Article 13:3a Wvggz.

13 Article XV, part C.

14 Explanatory memorandum, p. 10.

Date

April 9, 2024

Our reference

2023-303493

Assessment Framework AP

The AP assesses whether the draft regarding the processing of personal data is in accordance with the Charter of Fundamental Rights of the European Union (EU), the GDPR (Regulation 2016/679), or the Police and Justice Directive (Directive 2016/680), the general legal principles of the EU, and other relevant law, whereby it must be sufficiently demonstrated that the principle of proportionality is met, by:

1. the draft being suitable for achieving the pursued objective of general interest or the protection of the rights and freedoms of others (suitability);
2. the objective cannot reasonably be achieved as effectively by other means that are less intrusive to the fundamental rights of the data subjects (subsidiarity);
3. the interference is not disproportionate to that objective, which particularly implies a balancing of the importance of the objective and the severity of the interference (proportionality);
4. the draft is sufficiently clear and precise regarding its scope and is predictable in its application (legal certainty);
5. the draft sufficiently indicates under which circumstances and conditions personal data may be processed, thereby ensuring that the interference is limited to what is strictly necessary (substantive and procedural safeguards); and
6. the draft is binding under national law (bindingness under national law).

The AP pays particular attention to the rights of data subjects and the compliance of the draft with Article 6, paragraphs 1 and 3, and Article 9 of the GDPR (Regulation 2016/679), or Articles 8 and 10 of the Police and Justice Directive (Directive 2016/680), as well as with the principles established in Article 5 of the GDPR or Article 4 of the Directive. This implies, among other things, that:

- (a) processing must be lawful, fair, and transparent in relation to the data subject;
- (b) personal data may only be collected for specified, explicitly defined, and legitimate purposes; and
- (c) processing must be adequate, relevant, and limited to what is necessary for the purposes.